

SUPERIOR COURT OF JUSTICE – ONTARIO

RE: **Alexandra Sale**, Plaintiff

 AND

 O’Grady’s Restaurant et al., Defendants/Respondents

 AND

 Ron Botan, Third Party/Moving Party

BEFORE: G.R. Strathy J.

COUNSEL: *Gregory Govedaris*, for the Defendants/Respondents
 Les D. Manley, for the Third Party/Moving Party

HEARD: February 17, 2011

REASONS FOR DECISION

[1] The defendant in this “slip and fall” case has issued a third party claim against someone who is allegedly responsible for injuries sustained by the plaintiff in a subsequent and similar accident. This is a motion, under rule 21.01(1)(b) of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194 (“the *Rules*”), to strike the third party claim on the ground that it fails to disclose a cause of action.

[2] These reasons are divided into the following sections:

- I. Background
- II. The Pleadings
 - a. The Statement of Claim in the First Accident
 - b. The Third Party Claim
- III. The Parties’ Submissions
- IV. The Principles Applicable to Rule 21.01(1)(b) Motions
- V. Some First Principles

- a. Joint Tortfeasors, Several Tortfeasors and Concurrent Tortfeasors
- b. Causation in Negligence
- c. Apportionment of Damages

VI. The Authorities

VII. Analysis and Conclusion

I. Background

[3] The plaintiff had the misfortune of having two slip and fall accidents, on the same day, exactly two years apart. In the first accident, on June 15, 2006, she was leaving O’Grady’s Restaurant (“O’Grady’s”) in Toronto, where she had been celebrating a new job, when she slipped and fell on the steps and broke her right hip (the “First Accident”). In this action, she sues O’Grady’s, the City of Toronto and others for the damages she sustained in the First Accident.

[4] Two years later, on June 15, 2008, she was visiting the cottage of her cousin, the proposed third party Ron Botan (the “Third Party”), when she fell walking down steps (the “Second Accident”). It is alleged in the third party claim that her injuries in the Second Accident “overlapped” with those in the First Accident. She has not commenced an action against the Third Party for her damages suffered in the Second Accident.

[5] O’Grady’s issued a third party claim against the Third Party in February 2010. The Third Party moves to strike that claim.

II. The Pleadings

(a) The Statement of Claim in the First Accident

[6] The statement of claim in this action was issued on October 31, 2006. It obviously made no reference to the Second Accident, which did not happen until 20 months later.

[7] An amended fresh as amended statement of claim was filed on January 19, 2010. It pleads that as a result of the “Fall” at O’Grady’s on June 15, 2006, the plaintiff broke her right hip. The pleading continues:

- as a result of the Fall the Plaintiff sustained permanent and debilitating injuries and damages resulting from those injuries, including hip pain, leg pain, back pain, insomnia, post-traumatic stress disorder and intermittent periods of depression;
- the Fall and the resulting damages were caused by the negligence of O’Grady’s, as well as the negligence of the City of Toronto.

[8] The statement of claim makes no reference to the Second Accident and no reference to any injuries sustained by the plaintiff in the Second Accident. There is no pleading that the plaintiff's injuries from the First Accident were contributing factors to the Second Accident, nor that the Second Accident was a foreseeable consequence of the First Accident. Nor is there any pleading that the Second Accident exposed latent conditions in the plaintiff caused by the First Accident.

[9] Unlike some of the cases to which I will refer, the plaintiff in this case is not prepared to acknowledge that the damages she claims against O'Grady's are limited to the damages she sustained in the First Accident.

(b) The Third Party Claim

[10] The third party claim recites the circumstances of the Second Accident and pleads that:

- the Second Accident was caused by the negligence of the Third Party;
- the plaintiff broke her right hip in the Second Accident;
- the injuries from the Second Accident "overlap" with the injuries in the First Accident;
- the statement of claim against O'Grady's does not make it clear that the plaintiff is limiting her claim against O'Grady's to the damages arising from the First Accident and without such limitation O'Grady's will have exposure to liability in the First Accident for the fault of the Third Party in the Second Accident;
- because the plaintiff is potentially seeking damages from O'Grady's relating to both accidents, it is open to O'Grady's to "seek indemnity from the Third Party to the extent of their contribution to the injuries complained of by the Plaintiff if they are found liable for those injuries"; and
- the Third Party has suffered no prejudice and is a necessary and proper party to the action and should be bound by the determination of negligence, if proven, and by the quantum of damage of the plaintiff, if proven.

[11] Some of these allegations are really arguments, as opposed to pleadings of fact.

III. The Parties' Submissions

[12] Counsel on behalf of the Third Party asserts that the right of contribution and indemnity conferred by s. 1 of the *Negligence Act*, R.S.O. 1990, c. N.1, is confined to "concurrent" tortfeasors and is not available to "consecutive" tortfeasors. Thus, he submits, tortfeasors who have inflicted common harm on a plaintiff in separate and distinct accidents cannot third party one and other. There is no need for contribution and indemnity, since each will only be held liable for their degree of responsibility for the plaintiff's injuries. The Third Party relies on the

decisions of the Court of Appeal in *O’Neil v. Van Horne* (2002), 59 O.R. (3d) 384, [2002] O.J. No. 1528 and *Misko v. Doe*, 2007 ONCA 660, 87 O.R. (3d) 517, aff’g 82 O.R. (3d) 535 (S.C.J.) and the decision of the Supreme Court of Canada in *Hanke v. Resurfire Corp.*, 2007 SCC 7, [2007] 1 S.C.R. 333.

[13] Counsel for the Third Party says that his submission is reinforced by s. 18(1) of the *Limitations Act, 2002*, S.O. 2002, c. 24, Sched. B. (“the *Limitations Act, 2002*”) which provides that the limitation period in a claim for contribution and indemnity begins to run on the day the statement of claim (in respect of which contribution and indemnity is sought) is served on the defendant. He says that if the Third Party’s position is correct, the right to contribution could be lost against a subsequent tortfeasor before the second accident occurs.

[14] Counsel for O’Grady’s replies that the plaintiff is “potentially” seeking damages against his client for both accidents. He observes that the statement of claim in this action does not make it clear that the plaintiff’s damages will be confined to the damages arising from the First Accident and the plaintiff has refused to confirm that she will confine her claim to those damages.

[15] Counsel for O’Grady’s takes issue with the proposition that contribution and indemnity is limited to concurrent tortfeasors. He says that because the plaintiff has not agreed to limit her claim against O’Grady’s to the damages she sustained in the First Accident, O’Grady’s “will have exposure to liability in the First Fall for the fault of the Third Party (tortfeasor) in the Second Fall”. He says that the plaintiff has consented to the issuance of the Third Party claim. He relies on the following authorities, in which he says that claims such as this have been allowed to proceed: *Martin v. Rayner*, [2003] O.J. No. 6262 (S.C.J.), motion for leave to appeal dismissed, [2003] O.J. No. 3583 (Div. Ct.); *Medeiros v. Dilworth* (2002), 59 O.R. (3d) 136, [2002] O.J. No. 1406 (S.C.J.); *Veffer v. Feldman* (2007), 85 O.R. (3d) 772, [2007] O.J. No. 1793 (S.C.J.); *Thompson v. O’Sullivan*, [2009] O.J. No. 1370 (S.C.J.).

IV. The Principles Applicable to Rule 21.01(1)(b) Motions

[16] Counsel for O’Grady’s relies on the line of cases that includes *Hunt v. Carey Canada Inc.*, [1990] 2 S.C.R. 959, *Rawson v. Rexcraft Storage and Warehouse Inc.* (1998), 164 D.L.R. (4th) 257, [1998] O.J. No. 3240 (C.A.) and *Lysko v. Braley* (2006), 79 O.R. (3d) 721, [2006] O.J. No. 1137 (C.A.), in support of the proposition that the claim should not be struck under Rule 21.01(1)(b) of the *Rules*, unless it is “plain and obvious” that the claim must fail. He says that for the purpose of this analysis, it must be assumed that all facts pleaded will be proven at trial, unless they are patently ridiculous or incapable of proof and that novel or unsettled questions of law should not be determined on such a motion: see *Nash v. Ontario* (1995), 27 O.R. (3d) 1, [1995] O.J. No. 4043 (C.A.).

[17] I accept those propositions. As well, the pleading must be read generously to allow for inadequacies due to drafting frailties and the plaintiff’s lack of access to key documents and discovery information: *Hunt v. Carey Canada Inc.*, above.

[18] While the facts pleaded in the third party claim are to be taken as true, the same does not apply to arguments or propositions of law. Moreover, as the third party claim is derived from the allegations in the statement of claim, I am entitled to examine the statement of claim to determine whether it can properly give rise to a claim by the defendant against the Third Party.

V. Some First Principles

[19] It will assist the discussion that follows to review some first principles.

(a) Joint Tortfeasors, Several Tortfeasors and Concurrent Tortfeasors

[20] The term “joint tortfeasor” is frequently used as shorthand to describe a several tortfeasor who, by operation of the *Negligence Act*, has joint and several liability with another several tortfeasor.

[21] Historically, however, the term “joint tortfeasor” was confined to master and servant, principal and agent, and those who act in a concerted fashion towards a common end. The point is made in the classic text on the subject, Glanville L. Williams, *Joint Torts and Contributory Negligence* (London: Stevens & Sons Limited, 1951) at p. 1 (“*Williams*”):

The term ‘joint tortfeasor’ is, in essence, well understood. Two or more tortfeasors are joint tortfeasors (a) where one is the principal of or vicariously responsible for the other, or (b) where a duty imposed jointly upon them is not performed, or (c) where there is concerted action between them to a common end. Except in the case of nonfeasance in breach of a joint duty, parties cannot be joint tortfeasors unless they have mentally combined together for some purpose.

[22] As *Williams* notes, tortfeasors who are not joint are necessarily “several”, in the sense of separate or independent. He makes a distinction between two types of several tortfeasors, at p. 1:

- several tortfeasors whose acts combine to cause the same damage; and
- several tortfeasors whose acts combine to cause different damage.

[23] His work does not deal with tortfeasors in the second category because there is no right of contribution between several tortfeasors who cause different damages.

[24] *Williams* suggests that the term “concurrent” tortfeasors can be used to describe tortfeasors whose torts concur, or run together, to produce the same damage. These include “joint tortfeasors”, in the technical sense described in para. 21 above, and “several tortfeasors whose acts combine to cause the same damage”. In the case of the former, there is both mental concurrence and causal concurrence, whereas in the case of several tortfeasors causing the same damage, there is only a causal concurrence. These distinctions are accepted by the leading

Canadian writer on the topic, David Cheifetz, *Apportionment of Fault in Tort* (Aurora, Ont.: Canada Law Book, 1981) (“Cheifetz”).

[25] At common law, joint tortfeasors, using the term in its technical sense above, were jointly and severally liable to the injured person, whereas several concurrent tortfeasors were severally liable – each was liable to the injured party for the full extent of the damage. There was no right of contribution between several tortfeasors: *Cheifetz* at p. 7.

[26] The common law was changed by the *Negligence Act*, S.O. 1930, c. 27 now in its revised form R.S.O. 1990, c. N.1. All concurrent tortfeasors, whether joint or several, are jointly and severally liable to the injured person.¹ As well, a right of contribution between such tortfeasors is established. The effect of the *Negligence Act* is summarized in *Cheifetz*, at p. 9:

The law in Ontario dealing with concurrent torts and contribution between concurrent tortfeasors was altered radically by the passage of the legislation now known as the *Negligence Act*. The legislation makes two major changes in the law applicable to concurrent tortfeasance: all concurrent tortfeasors, whether joint or several, are jointly and severally liable to the injured person for the damages concurrently caused and there is now a right of contribution between concurrent tortfeasors.

[27] The Ontario Court of Appeal described the effect of s. 1 of the *Negligence Act* in *Martin v. Listowel Memorial Hospital* (2000), 51 O.R. (3d) 384, [2000] O.J. No. 4015 (C.A.) at paras. 34 and 35 as follows:

The effect of section 1 of the *Negligence Act* is to make all persons sued, who caused or contributed to the damage suffered by the plaintiff jointly and severally liable to the plaintiff for the damage. This is referred to by the Ontario Law Reform Commission in its *Report on Contribution Among Wrongdoers and Contributory Negligence* (Toronto: Ministry of the Attorney General, 1988) as “*in solidum* liability” (chapter 3). The purpose of the legislation is to facilitate full recovery of the loss for the plaintiff, while at the same time providing a mechanism for each of those who contributed to the loss to share the financial responsibility in the proportions of their respective degrees of fault.

¹ Section 1 of the *Negligence Act*: “Where damages have been caused or contributed to by the fault or neglect of two or more persons, the court shall determine the degree in which each of such persons is at fault or negligent, and, where two or more persons are found at fault or negligent, they are jointly and severally liable to the person suffering loss or damage for such fault or negligence, but as between themselves, in the absence of any contract express or implied, each is liable to make contribution and indemnify each other in the degree in which they are respectively found to be at fault or negligent.”

It is therefore axiomatic that the plaintiffs' judgment against each defendant found at fault to any degree, be in the amount of 100 per cent of the damages suffered. Of course, the plaintiff cannot collect more than 100 per cent in total from all defendants, so that satisfaction of any amount against one is satisfaction against all. However, as between themselves, the defendants are each entitled to contribution and indemnity to the extent of any overpayment to the plaintiff of their own proportionate share. Any defendant who successfully claimed over against a third party is also entitled to contribution from that third party to the extent of that party's fault.

[28] Section 5 of the *Negligence Act* is the procedural remedy that permits a defendant to exercise its right to contribution and indemnity, under s. 1 of the *Negligence Act*, against a person who is not already a party to the action, by moving to add the person as a defendant or by taking third party proceedings.²

[29] It should be noted that it is a condition-precedent to so doing that the party to be added is or may be “wholly or partly responsible for the damages claimed”.

[30] The rights of contribution and indemnity conferred by the *Negligence Act* exist between concurrent tortfeasors – those persons whose conduct causes a single loss in another. The statute is not concerned with the acts of several tortfeasors whose actions produce different damage in the same persons. In those circumstances, several tortfeasors were, and still are, only liable for the damage they each caused: Ontario Law Reform Commission, *Report on Contribution Among Wrongdoers and Contributory Negligence* (Toronto: Ministry of the Attorney General, 1988) at p. 8; *Cheifetz* at p. 7.

[31] As the Ontario Law Reform Commission stated, at p. 8, citing *Williams*:

... in the case of non-concurrent, several tortfeasors, whose acts have produced different damage, each tortfeasor is liable to [the plaintiff] only for the damage he has caused. [The plaintiff's] “total damage must therefore be apportioned between the defendants” who are severally, but not concurrently, liable.

[32] “Concurrent tortfeasors”, therefore, should be used to describe several tortfeasors whose acts combine to produce the same damage. Their actions need not be concurrent in time. Such tortfeasors have joint and several liability and have a right to contribution pursuant to the

² Section 5 of the *Negligence Act*: “Wherever it appears that a person not already a party to an action is or may be wholly or partly responsible for the damages claimed, such person may be added as a party defendant to the action upon such terms as are considered just or may be made a third party to the action in the manner prescribed by the rules of court for adding third parties.”

Negligence Act. It follows that I do not accept the broad proposition of counsel for the Third Party that there is no right of contribution and indemnity between consecutive tortfeasors. There may be a right of contribution and indemnity where the acts of consecutive tortfeasors cause damage that is indivisible. *Athey v. Leonati*, [1996] 3 S.C.R. 458, discussed below, was one such case.

[33] The distinction between several tortfeasors who are “concurrent tortfeasors whose acts combine to produce the same damage” and several tortfeasors whose acts combine to cause different damage, is purely a question of fact, depending on whether the court is able to separate the different elements of damage: *Williams* at pp. 20-21. It has been suggested by one respected writer that:

The question is primarily not one of the fact of causation, but of the feasibility and practical convenience of splitting up the total harm into separate parts which may be attributed to each of the two or more causes. Where a factual basis can be found for some rough practical apportionment, which limits a defendant’s liability to that part of the harm of which that defendant’s conduct has been a cause in fact, it is likely that the apportionment will be made. Where no such basis can be found, the courts generally hold the defendant [sic] for the entire loss, notwithstanding the fact that other causes have contributed to it.³

[34] Determining whether someone is a concurrent tortfeasor or a non-concurrent several tortfeasor may involve complicated issues of causation. Most particularly, it requires a determination of whether the cause and the damage are capable of being isolated and linked to the exclusion of other causes and damages. I now turn to this issue.

(b) Causation in Negligence

[35] The primary test of causation in cases of negligence is the “but for” test, except when the circumstances make it impossible or impractical to apply that test, in which case the courts apply the “material contribution” test: *Athey v. Leonati* and *Hanke v. Resurface Corp.*, above. As these cases are important to the analysis of the issue before me, I will review them in some detail.

Athey v. Leonati

[36] The plaintiff, who had a history of back problems, was involved in two successive motor vehicle accidents about two months apart. In the first accident, he suffered back and neck injuries. While recovering from this accident he was involved in a head-on collision with a truck.

³ W. Page Keeton, ed., *Prosser and Keeton on The Law of Torts*, 5th ed. (St. Paul, Minn.: West Publishing Co., 1984) at p. 345 (“*Prosser*”). See also *Cheifetz*, at pp. 6-7: “The distinction between several tortfeasors causing the same damage and tortfeasors causing different damages is entirely a question of fact, depending on whether the court is able to sever the individual items of damage in cases where the same person has suffered the damage.”

His immediate injuries did not appear to be severe and he was able to walk away from the accident. About six months later, as his condition was improving, his doctor suggested that he should resume his normal exercise routine. He suffered a herniated disc while warming up and required hospitalization and surgery.

[37] The plaintiff sued the other drivers in two separate actions, which proceeded to trial together. The defendants were represented by the same counsel, liability was admitted and the parties proceeded as if there was only one defendant and only one accident. The only issue was damages, the question being whether the disc herniation had been caused by the injuries sustained in the accidents or whether it was attributable to the plaintiff's pre-existing back problems.

[38] The trial judge had concluded that the accidents were a minor contributing factor to the disc herniation and awarded the plaintiff twenty-five percent of his damages. The British Columbia Court of Appeal affirmed, commenting that the plaintiff's argument based on the "material contribution" made by the accidents to the disc injury had never been put to the trial judge.

[39] In the Supreme Court of Canada, the defendants argued that where a loss is caused by tortious and non-tortious causes, it is possible to apportion the loss according to the degree of causation. The Supreme Court held that this was contrary to well-established principles – at para. 12:

It has long been established that a defendant is liable for any injuries caused or contributed to by his or her negligence. If the defendant's conduct is found to be a cause of the injury, the presence of other non-tortious contributing causes does not reduce the extent of the defendant's liability.

[40] The Supreme Court noted that the usual, but not conclusive, test for causation is the "but for" test. The court also acknowledged that in some circumstances, where that test is unworkable, courts have recognized that causation is established where the defendant's negligence "materially contributed" to the occurrence of the injury: see *Myers v. Peel County Board of Education*, [1981] 2 S.C.R. 21. A contributing factor will be material if it falls outside the *de minimis* range. Causation does not need to be proven with scientific precision.

[41] At paras. 17-20, the Supreme Court confirmed that it is not necessary for the plaintiff to show that the defendant's conduct was the sole cause of the injury. If the defendant's conduct was a cause of the injury, he/she will not be excused for liability because of the existence of other conditions that were necessary to cause the injury:

It is not now necessary, nor has it ever been, for the plaintiff to establish that the defendant's negligence was the sole cause of the injury. . . . As long as a defendant is part of the cause of an injury, the defendant is liable, even though his act alone was not enough

to create the injury. There is no basis for a reduction of liability because of the existence of other preconditions: defendants remain liable for all injuries caused or contributed to by their negligence.

This proposition has long been established in the jurisprudence. . .

The law does not excuse a defendant from liability merely because other causal factors for which he is not responsible also helped produce the harm ...

This position is entrenched in our law and there is no reason at present to depart from it. If the law permitted apportionment between tortious causes and non-tortious causes, a plaintiff could recover 100 percent of his or her loss only when the defendant's negligence was the sole cause of the injuries. Since most events are the result of a complex set of causes, there will frequently be non-tortious causes contributing to the injury. Defendants could frequently and easily identify non-tortious contributing causes, so plaintiffs would rarely receive full compensation even after proving that the defendant caused the injury. This would be contrary to established principles and the essential purpose of tort law, which is to restore the plaintiff to the position he or she would have enjoyed but for the negligence of the defendant. [Emphasis in original].

[42] Although one might interpret these observations as confined to situations where the defendant's negligence combined with non-tortious causes, the Supreme Court of Canada confirmed in a subsequent case, *E.D.G. v. Hammer*, [2003] 2 S.C.R. 459, [2003] S.C.J. No. 52, at paras. 31-32, that the principle in *Athey v. Leonati* is not restricted to cases involving non-tortious preconditions of the injury: "It applies to any case in which the injuries caused by a number of factors are indivisible".

[43] The Supreme Court in *Athey v. Leonati* said that the injury in question was a single indivisible injury, which would make division impossible and inappropriate – at para. 25:

In the present case, there is a single indivisible injury, the disc herniation, so division is neither possible nor appropriate. The disc herniation and its consequences are one injury, and any defendant found to have negligently caused or contributed to the injury will be fully liable for it.

[44] This observation highlights that in the unique case before the court, the injury to the plaintiff – the disc herniation – occurred only once and it was a product of the torts of both defendants. It was a single injury, incapable of division.

[45] The Supreme Court observed, at para. 39, that the disc herniation was not a cause, it was an effect: “[I]t was the injury” [emphasis added]. Warming up exercises were not sufficient to cause the herniation in the absence of a latent disposition. Reviewing the findings of the trial judge, the Supreme Court held, at para. 47, that the case was:

... a straightforward application of the thin skull rule. The pre-existing disposition may have aggravated the injuries, but the defendant must take the plaintiff as he finds him. If the defendant's negligence exacerbated the existing condition and caused it to manifest in a disc herniation, then the defendant is a cause of the disc herniation and is fully liable.

[46] In allowing the appeal and granting judgment for the full amount of the plaintiff's damages, the Supreme Court said that the Court of Appeal should not have refused to hear the appellant's “material contribution” argument on the ground that it had not been advanced before the trial judge. The court said, at para. 50:

It is a well-established principle that a defendant is liable for any injuries for which the defendant's negligence is a cause.

[47] To that one might add that it is equally well-established that a defendant is not liable for any injuries for which the defendant's negligence is not a cause.

Hanke v. Resurfice Corp.

[48] In *Hanke v. Resurfice Corp.*, above, the Supreme Court of Canada confirmed that the “but for” test remains the basic test for determining causation in cases of negligence. The exception, which permits the use of the “material contribution” test, requires, at para. 25 that:

- it must be impossible, due to factors outside the plaintiff's control, for the plaintiff to prove that the defendant's negligence caused the plaintiff's injury using the “but for” test; and
- it must be clear that the defendant breached a duty of care owed to the plaintiff, thereby exposing the plaintiff to an unreasonable risk of injury and the plaintiff must have suffered that form of injury.

[49] In that case, the plaintiff, an operator of an ice-resurfacing machine, had suffered severe burns when a water hose had been placed in the gasoline tank of the machine, rather than in the gasoline tank. The gasoline tank overflowed, vaporized gasoline was ignited by a heater and an explosion and fire occurred. The plaintiff sued the manufacturer of the machine, arguing that the gasoline and water tanks were placed in close proximity, were similar in appearance and were easily confused.

[50] The trial judge had found that the operator was solely to blame for the accident and was entirely responsible for his own injuries. The Alberta Court of Appeal in *Hanke v. Resurfice*,

2005 ABCA 383, 53 Alta. L.R. (4th) 219, referring to *Athey v. Leonati*, above, and *Walker Estate v. York Finch General Hospital*, [2001] 1 S.C.R. 647, stated at para. 14 that “[W]here there is more than one potential cause, the ‘material contribution test’ should be used.” It directed a new trial.

[51] The Supreme Court of Canada allowed an appeal. It approved the trial judge’s conclusion on both foreseeability and causation.

[52] The trial judge had applied a “but for” test of causation. He found that the plaintiff failed to establish that his injuries were caused by the negligent design of the machine. “But for” the plaintiff putting the water hose in the gasoline tank, or leaving it there, the explosion would not have occurred.

[53] The Supreme Court held that the Court of Appeal had erred in stating that the “material contribution” test should be used where there is more than one potential cause of an injury. It confirmed that the basic test is the “but for” test, but the material contribution test can be applied in “special circumstances” where proof using the “but for” test is impossible.

[54] The full text of the Supreme Court’s reasons on this point is as follows at paras. 20-25:

Much judicial and academic ink has been spilled over the proper test for causation in cases of negligence. It is neither necessary nor helpful to catalogue the various debates. It suffices at this juncture to simply assert the general principles that emerge from the cases.

First, the basic test for determining causation remains the "but for" test. This applies to multi-cause injuries. The plaintiff bears the burden of showing that "but for" the negligent act or omission of each defendant, the injury would not have occurred. Having done this, contributory negligence may be apportioned, as permitted by statute.

This fundamental rule has never been displaced and remains the primary test for causation in negligence actions. As stated in *Athey v. Leonati*, at para. 14, *per* Major J., "[t]he general, but not conclusive, test for causation is the 'but for' test, which requires the plaintiff to show that the injury would not have occurred but for the negligence of the defendant". Similarly, as I noted in *Blackwater v. Plint*, at para. 78, "[t]he rules of causation consider generally whether 'but for' the defendant's acts, the plaintiff's damages would have been incurred on a balance of probabilities."

The "but for" test recognizes that compensation for negligent conduct should only be made "where a substantial connection between the injury and the defendant's conduct" is present. It

ensures that a defendant will not be held liable for the plaintiff's injuries where they "may very well be due to factors unconnected to the defendant and not the fault of anyone": *Snell v. Farrell*, at p. 327, *per Sopinka J.*

However, in special circumstances, the law has recognized exceptions to the basic "but for" test, and applied a "material contribution" test. Broadly speaking, the cases in which the "material contribution" test is properly applied involve two requirements.

First, it must be impossible for the plaintiff to prove that the defendant's negligence caused the plaintiff's injury using the "but for" test. The impossibility must be due to factors that are outside of the plaintiff's control; for example, current limits of scientific knowledge. Second, it must be clear that the defendant breached a duty of care owed to the plaintiff, thereby exposing the plaintiff to an unreasonable risk of injury, and the plaintiff must have suffered that form of injury. In other words, the plaintiff's injury must fall within the ambit of the risk created by the defendant's breach. In those exceptional cases where these two requirements are satisfied, liability may be imposed, even though the "but for" test is not satisfied, because it would offend basic notions of fairness and justice to deny liability by applying a "but for" approach.

[55] By way of example only, the Supreme Court mentioned two cases in which the "material contribution" test would be appropriately applied:

- where it is impossible to say which of two tortious sources caused the injury, as where two shots are carelessly fired at a victim, and it is impossible to say which shot caused the injury – as in the famous case of *Cook v. Lewis*, [1951] S.C.R. 830; and
- where it is impossible to prove what a particular person in the causal chain would have done, had the defendant not committed a negligent act or omission, thus breaking the "but for" causative chain.

(c) Apportionment of Damages in Multi-Cause Cases

[56] It can be a complicated exercise to apportion damages in cases involving consecutive tortfeasors, whether concurrent or otherwise, sometimes overlapping with other, non-tortious, prior or subsequent causes of damage.

[57] One of the leading cases is the decision of the Supreme Court of Canada in *Blackwater v. Plint*, 2005 SCC 58, [2005] 3 S.C.R. 3. That was an action brought by a former pupil of a

residential school against the United Church and the Government of Canada, claiming damages for sexual abuse and other harm, including damage caused by corporal punishment and deprivation. The trial judge found that all claims, other than the sexual assault claims, were time-barred. The judge also found that the plaintiff had suffered trauma at his home before he came to the residential school. The Supreme Court put the problem as follows, at para. 74:

The calculation of damages for sexual assault to [the plaintiff] is complicated by two other sources of trauma: (1) trauma suffered in his home before he came to AIRS [the residential school]; and (2) trauma for non-sexual abuse and deprivation at AIRS that was statute barred. In reality, all these sources of trauma fused with subsequent experiences to create the problems that have beset [the plaintiff] all his life. Untangling the different sources of damage and loss may be nigh impossible. Yet the law requires that it be done, since at law a plaintiff is entitled only to be compensated for *loss caused by the actionable wrong*. It is the "essential purpose and most basic principle of tort law" that the plaintiff be placed in the position he or she would have been in had the tort not been committed: *Athey v. Leonati*, [1996] 3 S.C.R. 458, at para. 32. [Italics in original; underlining added].

[58] The trial judge in *Blackwater v. Plint* followed that principle and approached the damage analysis by observing that the plaintiff's experiences in his home, and the damages suffered as a result of the time-barred claims, would have caused him to suffer serious psychological damages even if the sexual abuse had not occurred. Damages were assessed by excluding the damages flowing from causes other than the sexual abuse. The Supreme Court concluded that this methodology was appropriate.

[59] The Supreme Court pointed out the need to distinguish between causation as to the source of the loss and the rules of damage assessment - at para. 78:

It is important to distinguish between causation as the source of the loss and the rules of damage assessment in tort. The rules of causation consider generally whether "but for" the defendant's acts, the plaintiff's damages would have been incurred on a balance of probabilities. Even though there may be several tortious and non-tortious causes of injury, so long as the defendant's act is a cause of the plaintiff's damage, the defendant is fully liable for that damage. The rules of damages then consider what the original position of the plaintiff would have been. The governing principle is that the defendant need not put the plaintiff in a better position than his original position and should not compensate the plaintiff for any damages he would have suffered anyway: *Athey*.

[60] The Supreme Court said that the “thin skull plaintiff” rule would also have to be applied, to recognize that the damages arising from the sexual assaults for which the defendants were liable could have been greater because of the plaintiff’s pre-existing condition, including the effect of the abuse he had previously suffered. The defendant, taking the victim as it finds him, is not responsible for the effects of the previous abuse, but it is liable for the damages flowing from the subsequent abuse, even though that damage was magnified by the plaintiff’s vulnerable condition. This observation was made at para. 79:

At the same time, the defendant takes his victim as he finds him - the thin skull rule. Here the victim suffered trauma before coming to AIRS. The question then becomes: what was the effect of the sexual assault on him, in his already damaged condition? The damages are damages caused by the sexual assaults, not the prior condition. However, it is necessary to consider the prior condition to determine what loss was caused by the assaults. Therefore, to the extent that the evidence shows that the effect of the sexual assaults would have been greater because of his pre-existing injury, that pre-existing condition can be taken into account in assessing damages.

[61] The court then turned to the “crumbling skull” case, that is, where a second wrongful act occurs after, or along with, the first act. The court said, at paras. 80-81, that in such circumstances:

The defendant must compensate for the damages it actually caused but need not compensate for the debilitating effects of the other wrongful act that would have occurred anyway. This means that the damages of the tortfeasor may be reduced by reason of other contributing causes: *Athey*, at paras. 32-36.

All these scenarios flow from the basic principle that damages must seek to put the plaintiff in the position he or she would have been in but for the tort for which the defendant is liable.

[62] The Supreme Court held that the trial judge had applied the correct approach by confining the damages to those arising out of the sexual assaults – at para. 82:

The trial judge correctly apprehended the applicable legal principles. He recognized the “daunting task” of untangling multiple interlocking factors and confining damages to only those arising from the actionable torts, the sexual assaults (2001 decision, at para. 365). He tried his best to award fair damages, taking all this into account. He recognized the thin skull principle, but in the absence of evidence that [the plaintiff’s] family difficulties prior to coming to AIRS had exacerbated the damage

he suffered from the sexual assaults he sustained at AIRS, the trial judge had no choice but to attempt to isolate those traumas. Similarly, there was no legal basis upon which he could allow damages suffered as a result of statute-barred wrongs committed at AIRS, like the beatings, to increase the award of damages.

[63] In coming to this conclusion, the Supreme Court implicitly rejected the plaintiff's contention – it stated, at para. 78:

[The plaintiff's] submissions that injury from traumas other than the sexual assault should not be excluded amount to the contention that once a tortious act has been found to be a material cause of injury, the defendant becomes liable for all damages complained of after, whether or not the defendant was responsible for those damages.

[64] There are many cases of multiple accidents in which difficult questions of causation and apportionment of damages have been addressed by trial judges. Moore J. of this court dealt with a particularly difficult case in *Broadbent v. Greater Toronto Transit Authority* (2008), 54 C.C.L.T. (3d) 19, [2008] O.J. No. 181, a case in which he discussed a number of the authorities, including *Blackwater v. Plint*.

[65] The circumstances were particularly unfortunate. The plaintiff, a young woman, had been severely injured in two motor vehicle accidents, one in 1998 and the other in 2001. In both accidents, she suffered a serious brain injury and fractured her right hip. To that extent, her injuries might be described as “overlapping”. She also suffered other injuries. The two actions were ordered to be tried together, but shortly before trial the plaintiff settled her claim with respect to the first accident, subject to court approval. This had not yet been obtained when the action arising from the second accident came to trial before Moore J.

[66] The plaintiff's position was that although her injuries overlapped, the damages flowing from the injuries in the second accident could be separately calculated. For example, the future care expenses claimed as a result of the second accident would not include the expenses she would have incurred for future care as a result of the first accident.

[67] Moore J. referred to *Blackwater v. Plint*, as well as other authorities discussed later in these reasons. He observed, at para. 138:

In the instant case, there is no bright line to be drawn between the consequences of Kate's brain injuries arising from her two accidents. Apart, perhaps, from her claims for future care, she does not present at this trial with distinct and separate injuries allocable to each accident.

[68] He concluded, at para. 143, that the appropriate course to take, in the case before him, was that set out in *Hicks v. Cooper* (1973), 1 O.R. (2d) 221, [1973] O.J. No. 772 (C.A.):

In my view, the better course to follow in circumstances where overlapping injuries and damages arise from successive accidents involves application of the formula provided by the Court of Appeal in *Hicks v. Cooper*, [1973] O.J. No. 772 (C.A.). Damages must be assessed against the defendants in the action arising from the first accident as at the day before the second accident. Damages must then be assessed on a global basis as at the date of the trial and from global damages the first assessment will be deducted.

[69] The objective, he said, at para. 146, was to allocate to each defendant the damages for which it was responsible:

The application of global assessment and allocation principles in this case may be somewhat complicated. The object of the exercise is to allocate to defendants in respective actions only those damages for which they ought to be responsible. Put another way, damages that a given defendant did not cause or contribute to ought not to be allocated to that defendant.

[70] In *Hicks v. Cooper*, the plaintiff had been involved in two separate motor vehicle accidents, some six months apart, and suffered a whiplash injury in both accidents. The Court of Appeal approved the trial judge's apportionment of damages between the two defendants, based on the principle expressed by the British Columbia Court of Appeal in *Long v. Thiessen and Laliberté* (1968), 65 W.W.R. 577, [1968] B.C.J. No. 1: the damages against the defendant in the first accident were assessed as if the trial were held on the day before the second accident occurred. A global assessment was then conducted of the damages sustained as a result of both accidents and the difference was assessed against the defendant in the second accident. The Court of Appeal in *Hicks v. Cooper* increased the damages award, but applied the same principle as the trial judge.

[71] *Hicks v. Cooper*, *Blackwater v. Plint* and *Broadbent v. GTAA* demonstrate that the assessment of damages in cases involving successive accidents is a relatively common phenomenon and that the courts have fashioned a methodology for isolating and awarding only those damages for which the particular tortfeasor is responsible.

VI. The Authorities

[72] Against this background, I turn to some of the cases that have considered issues similar to the one before me. It is fair to say that the case law in this area, in courts of first instance, has been inconsistent. Fortunately, there has been guidance from the Court of Appeal in *O'Neil v. Van Horne* and *Misko v. Doe* and I will begin by examining these decisions before turning to the other authorities.

O'Neil v. Van Horne

[73] In *O'Neil v. Van Horne*, the plaintiff alleged that the defendant had sexually assaulted her when she was three years old and he was twelve. She claimed that, as a result of the defendant's assault, she suffered depression, emotional and mental distress and other injuries. The defendant sought to add three third parties: the plaintiff's parents, who allegedly abused her during childhood, and a former boyfriend who allegedly sexually assaulted her some sixteen years after the events at issue in the action. The Court of Appeal dismissed an appeal from the decision of the motion judge refusing to add the third parties.

[74] The Court of Appeal began by noting that at common law there was no right of contribution between joint tortfeasors and that the sole basis for the remedy was s. 1 of the *Negligence Act*. The court noted, at para. 5, that the case law had restricted the application of that section to concurrent wrongdoers, referring to *Martin v. Listowel Memorial Hospital*, above. In that case, the Court of Appeal had stated, at para. 48:

In our view, the effect of s. 1 of the *Act* is to define the legal effect of a finding of fault by concurrent wrongdoers. The effect is to change the common law, and impose on concurrent wrongdoers joint and several liability to the plaintiff. It is the only section of the *Act* which imposes liability, as opposed to apportioning fault. The section is substantive, not procedural. Therefore, when applying the section to any specific action, it is understood that joint and several liability to the plaintiff can and will attach only to a party defendant, although others who may also have been at fault could potentially have been found jointly and severally liable had they been sued by the plaintiff. Because procedurally the section only affects defendants, under this section the court is to apportion degrees of fault only to defendants. The court must also apportion fault to the other parties, the plaintiff and third parties, not under s. 1 of the *Act* but rather pursuant to ss. 3 and 4 of the *Act*, and in accordance with the requirements of the pleadings. [Emphasis added].

[75] The Court of Appeal did not define what it meant by “concurrent wrongdoers”, although there is language in para. 11 of the decision, discussed immediately below, to suggest that it was referring to tortfeasors who were acting concurrently, as opposed to including tortfeasors whose acts were separate in time but caused the same damages.

[76] The Court of Appeal in *O'Neil v. Van Horne* rejected the defendant's argument that it would be impossible for the plaintiff's damages to be restricted to those he caused. It described this as a “trial problem”, of sorting out and allocating cause and effect for injuries. It said, at paras. 10 and 11:

A proper analysis starts at the beginning in 1972 when the appellant committed a tortious act against the plaintiff. The consequences of that act may or may not have been latent for a time but they continued and will continue until trial as a continuous stream of damage caused by a single act. That stream may have come into confluence with other streams flowing from other tortious or non-tortious acts, but the subsequent wrongdoers are no more jointly responsible for the full damages flowing after their acts than they would be for the plaintiff's damages, if any, suffered before they committed torts. They are each answerable for their individual conduct but not for that of others.

That is why the wrongdoers must be acting concurrently to attract the application of s. 1 of the *Negligence Act*. And that is why s. 1 has no application to this case and why the third party notices should not issue. [Emphasis added].

[77] It seems to me that this analysis, which is entirely consistent with the later decision of the Supreme Court of Canada in *Blackwater v. Plint*, discussed above, might have ended here and that what followed was *obiter*.

[78] After referring to the decision of the Supreme Court of Canada in *Athey v. Leonati*,⁴ the Court of Appeal stated, at para. 14:

This is clearly not a complaint related to a foot and an arm and it may be difficult to separate out the consequences, if any, of the defendant's conduct from all the influences upon the plaintiff over

⁴ The reference was to the judgment of Major J., at paras. 24-25, where he discussed apportionment between “divisible” injuries, referring to an example given by Fleming, *The Law of Torts*, 8th ed. (Sydney: Law Book Co., 1992) at p. 201, of one person injuring the plaintiff’s foot and the other person injuring the plaintiff’s arm. Major J. had stated:

(2) Divisible Injuries

The respondents submitted that apportionment is permitted where the injuries caused by two defendants are divisible (for example, one injuring the plaintiff's foot and the other the plaintiff's arm): Fleming, *supra*, at p. 201. Separation of distinct and divisible injuries is not truly apportionment; it is simply making each defendant liable only for the injury he or she has caused, according to the usual rule. The respondents are correct that separation is also permitted where some of the injuries have tortious causes and some of the injuries have non-tortious causes: Fleming, *supra*, at p. 202. Again, such cases merely recognize that the defendant is not liable for injuries which were not caused by his or her negligence.

In the present case, there is a single indivisible injury, the disc herniation, so division is neither possible nor appropriate. The disc herniation and its consequences are one injury, and any defendant found to have negligently caused or contributed to the injury will be fully liable for it.

the intervening years – but that is her task as a plaintiff. And she has not backed away from that obligation. In repeated references in her factum filed in this court it is said that she seeks only damages for which the defendant is solely to blame. There is no suggestion that she seeks damages against him as a contributor along with other tortious or non-tortious causes. Nor could she, because the appellant is no more a contributor to any damages suffered as a result of the proposed third parties' wrongdoing than they are for his conduct and its consequences. The tortfeasors are each distinct. Whatever difficulties may be presented at trial, the plaintiff will have to meet the onus of satisfying the court that the defendant's conduct led to particular consequences. [Emphasis added].

[79] The observation, “[T]he tortfeasors are each distinct”, presumably means that the defendant and the proposed third parties were several, non-concurrent tortfeasors. The Court of Appeal’s conclusion in *O’Neil v. Van Horne* is necessarily a conclusion that the proposed third parties were not concurrent tortfeasors and that there was no right of contribution from them.

[80] By the time of trial, the plaintiff in *O’Neil v. Van Horne* would have been in her mid-30s. She alleged that as a result of a sexual assault by the defendant some 30 years earlier she had suffered depression, difficulty in developing relationships with men, low self-esteem and emotional and mental distress. The defendant would argue that her conditions were caused or contributed to by the abuse she suffered from her parents and former boyfriend. The trial judge would be required, in the words of the Court of Appeal, to separate the stream of damages flowing from the defendant’s single tortious act from the stream of damages flowing from the acts of the plaintiff’s parents and boyfriend. As the Court of Appeal noted, at trial the plaintiff would have the onus of satisfying the court that the defendant’s conduct led to particular consequences in the form of damages. The fact that the plaintiff’s condition by the time of trial may have been affected by the actions of her parents and former boyfriend did not give the defendant a right to claim contribution and indemnity from them. This did not preclude him from adducing evidence on the issue of the contribution of other causes or of requiring the plaintiff to make out her case against him.

[81] It has been argued before me that *O’Neil v. Van Horne* is distinguishable because the plaintiff conceded in her factum that she claimed only those damages for which the defendant was solely to blame. While that is true, the words “[N]or could she ...”, in para. 14 of the reasons, suggests that the plaintiff’s agreement to limit his or her claim against the first tortfeasor to the damages he or she caused – a factor referred to in some of the other cases – was immaterial, because the plaintiff had no right to claim for anything more than the consequences of the defendant’s acts. As the Court of Appeal noted at the end of the extract, it may not always be an easy thing at trial to differentiate the consequences of the first accident from those of the second, but the cases are replete with examples of judges and juries doing exactly that.

[82] I turn now to *Misko v. Doe*, which was decided by the Court of Appeal five years after *O’Neil v. Van Horne*.

Misko v. Doe

[83] In *Misko v. Doe*, the plaintiff had been involved in two automobile accidents eleven months apart. She settled with the defendant, DeBruin, in the first accident and gave him a standard form of release that included the usual undertaking that she would not make any claim or take any proceedings against a person who might claim contribution and indemnity from him.

[84] The driver responsible for the second accident was unidentified, so the plaintiff sued his own insurer, Liberty Mutual, which provided unidentified motorist coverage.

[85] After Liberty Mutual became aware of the earlier accident, it brought a motion for leave to issue a third party claim against the first tortfeasor, De Bruin. The motion judge, Heeney J., expressed reservations about whether the third party claim should be allowed to proceed. He stated, in part:

Where two accidents happen one after the other, it is customary to have both actions tried together, or one after the other, in order that a global assessment of the plaintiff's damages can be arrived at, and be apportioned between the tortfeasors as the court deems appropriate.

However, when all claims arising out of the first accident have been settled, it is not necessary to assess the plaintiff's damages arising out of that accident. Those claims have been disposed of, and whether the settlement was too high or too low or just right should make no difference. All that should count is the physical condition of the plaintiff at the time of the second accident, which can be determined on the evidence without the need for a Third Party Claim. If he was already significantly injured by the first accident, then Liberty Mutual should only be held liable for any aggravation to those injuries or any additional injuries caused by the second accident.⁵

[86] However, Heeney J. decided to follow the decision of Chapnik J. in *Medeiros v. Dilworth*, above, where a third party claim had been permitted to proceed in similar circumstances. Chapnik J. had relied on *Athey v. Leonati*. Heeney J. referred to the following observation of Major J. at para. 35 of *Athey v. Leonati*:

The defendant need not put the plaintiff in a position better than his or her original position. The defendant is liable for the injuries caused, even if they are extreme, but need not compensate the plaintiff for any debilitating effects of the pre-existing condition

⁵ The reasons of Heeney J. are not separately reported, but are quoted by Desotti J. at 82 O.R. (3d) 535.

which the plaintiff would have experienced anyway. The defendant is liable for the additional damage but not the pre-existing damage.[Emphasis in original].

[87] Heeney J. continued:

Applied to this case, one could say that Liberty Mutual can be held liable for the additional damage caused by the second motor vehicle, but not for the pre-existing damage caused by the first accident.

This would be a simple approach to apply provided that the plaintiff suffered discrete, separate injuries in each accident that could be differentiated from each other. A difficulty could arise, however, if the plaintiff's current condition was contributed to by both accidents in a manner that could not be differentiated. In any event, Liberty Mutual would be liable for the whole loss, since the second accident materially contributed to the injury, and would properly seek contribution from the defendant in the first accident, since that defendant also materially contributed to the injury.

Having considered the matter, I defer to the wisdom of my colleague Chapnik J. Leave to issue the Third Party Claim will be granted. [Emphasis added].

[88] A motion was then brought before Desotti J. to strike the third party claim. There was affidavit evidence of the plaintiff's counsel, stating that the claim being made against Liberty Mutual was solely in relation to damages arising from the second collision and that no damages were being claimed for injuries in the first accident, which was the responsibility of De Bruin.

[89] Desotti J. reviewed the case law at length, extracting a number of principles. He held, relying on *O'Neil v. Van Horne* and *Martin v. Listowel Memorial Hospital*, that defendants who are not concurrent tortfeasors, which he used in the sense of operating at the same time, cannot third party each other. He also concluded that distinct and separate injuries are to be assessed based on each defendant's liability for the injuries they have caused as a result of their respective wrongs. He expressed doubts about the decisions in *Martin v. Rayner* and *Medeiros v. Dilworth*, drawing a distinction between concurrent tortfeasors and a situation where a defendant may be exposed to damages as a result of the consequences of two separate acts of negligence. Desotti J. struck out the third party claim.

[90] The Court of Appeal, speaking through Rosenberg J.A., with whom Cronk and Gillese JJ.A. agreed, summarized the motion judge's conclusions as follows, at para. 9:

In careful and comprehensive reasons, the motion judge reviewed many of the leading, and conflicting, authorities including

Medeiros. He concluded that distinct and separate injuries are to be assessed based on each defendant's liability for the injury they have caused as a result of their respective wrongs. Further, if defendants are not concurrent tortfeasors (existing or happening at the same time) then they cannot third party one another. Since the defendant and the third party were not concurrent tortfeasors in this case, the third party claim must be struck out. I agree with the motion judge's conclusion, although for somewhat different reasons.

[91] I take from this that the “conclusion” to which the Court of Appeal refers is the decision to strike the third party claim, as opposed to the conclusion that concurrent tortfeasors means torts that exist or happen at the same time.

[92] The Court of Appeal did not address the observations of Desotti J. that s. 1 of the *Negligence Act* only applies to concurrent tortfeasors and that “if defendants are not concurrent tortfeasors (existing or happening at the same time) then they cannot third party one another”. Nor did it directly refer to its own decision in *O’Neil v. Van Horne*, on which those propositions were said to be based. It made passing references to para. 14 of the decision in *O’Neil v. Van Horne*, which I have quoted above, noting that where the injuries suffered in the two accidents are “indivisible” or “overlapping”, it may be difficult to sort out which injuries were caused by which accident, but the court has the task of doing so.

[93] The Court of Appeal held that the “governing decision” in the circumstances was the “full compensation principle” set out by the Supreme Court of Canada in *Athey v. Leonati*, which had been relied upon by the Court of Appeal in *O’Neil v. Van Horne*, and particularly the statement of Major J. at para. 22:

Apportionment between tortious causes is expressly permitted by provincial negligence statutes and is consistent with the general principles of tort law. The plaintiff is still fully compensated and is placed in the position he or she would have been in but for the negligence of the defendants. Each defendant remains fully liable to the plaintiff for the injury, since each was a cause of the injury. *The legislation simply permits defendants to seek contribution and indemnity from one another, according to the degree of responsibility for the injury.* [Emphasis added by Court of Appeal.]

[94] The Court of Appeal then added, at para. 15:

In accordance with this statement, Liberty Mutual submits that it is entitled to seek contribution and indemnity from De Bruin. I agree with Liberty Mutual to this extent. If, because of the full compensation principle set out in *Athey*, Liberty Mutual could be liable for damages caused by De Bruin, then it is entitled to issue

the third party action. It need not wait until the conclusion of the trial and then launch another action against De Bruin. See *Medeiros*, at para. 14.

[95] Under the heading “Allocation of Responsibility”, Rosenberg J.A. explained his reasons for concluding that the third party claim should be struck, because Liberty Mutual could never be at risk of having to compensate the plaintiff for the damages he sustained in the first accident. For the sake of completeness, I will reproduce the full text of the reasons under this heading, beginning at para. 16:

In the circumstances of this case, however, I am satisfied that at the trial, Liberty Mutual will not be at risk of having to compensate the plaintiff for damages from the first accident. The trial between the plaintiff and Liberty Mutual will proceed in accordance with the principles established by this court and generally followed in other jurisdictions where the plaintiff has been injured by successive motor vehicle accidents. Liberty Mutual will have no occasion to seek contribution or indemnity from De Bruin because, if it should be found to be liable to the plaintiff, judgment will go against it only for its degree of responsibility for the plaintiff's injuries. Since it can have no claim against De Bruin, it is not entitled to commence a third party claim either under Rule 29.01 or s. 5 of the *Negligence Act*. In the words of Rule 29.01, De Bruin will not be liable to Liberty Mutual and, in the words of s. 5 of the *Act*, De Bruin is not responsible for the damages claimed by the plaintiff.

[96] Pausing here, it seems to me that this statement is entirely consistent with the reasoning of Desotti J. and with that of the Court of Appeal in *O’Neil v. Van Horne*. The driver in the second accident could not be responsible for the damages caused by DeBruin in the first accident and would only be liable for the plaintiff’s injuries that were caused by the second accident. The principles applied by the courts in successive motor accidents – of separating out the damages caused by the various “streams” (to use the words of the Court of Appeal in *O’Neil v. Van Horne*), could be used to separate out those damages for which Liberty Mutual would be liable.

[97] Rosenberg J.A. continued, at para. 17:

At the hearing of this appeal, there was much discussion about whether at this stage it was possible to determine whether the injuries to the plaintiff were divisible or indivisible and whether the tortfeasors could be described as concurrent tortfeasors or fell into some other category. In my view, these terms simply obscure the issues that will be determined at the trial in accordance with the *Act* and governing principles. Assuming that, as alleged by Liberty Mutual, there is a single indivisible injury, this simply means that, applying *Athey v. Leonati*, both tortfeasors are fully liable for the

injury. The court, however, must still apportion responsibility between the tortfeasors. Liberty Mutual will be responsible in the pending trial only to the extent that the unidentified driver caused or contributed to the damages claimed.

[98] I take the last two sentences of this paragraph to mean that if the plaintiff has suffered a “single indivisible injury”, at the hands of concurrent tortfeasors, then each tortfeasor is liable for that injury to the extent it caused the damages.

[99] Rosenberg J.A. concluded his remarks under this heading at para. 18:

Section 1 of the *Negligence Act* changed the common law and allows for contribution and indemnity among tortfeasors. See David Cheifetz, *Apportionment of Fault in Tort* (Aurora: Canada Law Book Ltd., 1981) at 8-9. However, s. 1 of the *Act* provides a mechanism to allocate responsibility for the plaintiff's damages: the court “shall determine the degree in which each of such persons are found at fault or negligent” (emphasis added). Such allocation of responsibility is necessary since it is the foundation for determining the amount of contribution or indemnity. Applying s. 1 to the circumstances of this case, at the trial between Misko and Liberty Mutual, the court will determine both the amount of damages suffered by Misko and the degree of responsibility attributable to the second accident. In view of the plaintiff's position that this is all he seeks from Liberty Mutual (and that he does not rely on the full compensation principle in *Athey*), judgment will go against Liberty Mutual only for the damages for which the second tortfeasor is responsible. If the damages are “indivisible” as is alleged by Liberty Mutual, this task may not be an easy one, but the court will have to make the determination. See *Blackwater v. Plint*, [2005] 3 S.C.R. 3 at para. 82; *O’Neil v. Van Horne* (2002), 59 O.R. (3d) 384 (C.A.) at para. 14; and *Long v. Thiessen* (1968), 65 W.W.R. 577 (B.C.C.A.). [Emphasis added; footnotes omitted].

[100] It is apparent from the words I have underlined in this paragraph that the plaintiff’s concession that he was not relying on the “full compensation principle in *Athey*” was central to the decision. This is confirmed by a paragraph entitled “Final Note” at the conclusion of the reasons, in which Rosenberg J.A. suggested that the plaintiff should amend the statement of claim to make it “absolutely clear” that he was not claiming damages for the injuries for which the driver in the second accident (and hence Liberty Mutual) was responsible.

[101] I conclude that the reasoning in *Misko v. Doe* was not intended to depart from the reasoning in *O’Neil v. Van Horne*. The plaintiff’s concession in *O’Neil v. Van Horne*, and the

amendment to the pleading suggested by Rosenberg J.A. in *Misko v. Doe*, put the issue beyond doubt and made much of the reasoning *obiter*.

[102] This is confirmed by the subsequent reference by Rosenberg J.A. to a number of cases supporting the third party's position that the third party action should be struck. He mentioned specifically the approach in *Hicks v. Cooper*, referred to earlier, which had been applied by Moore J. in *Broadbent v. Greater Toronto Transit Authority*. Rosenberg J.A. concluded, at para. 25:

The court can apply the same principles in this case and thus determine the damages for which Liberty Mutual is responsible. I point out that there has been some criticism of the *Hicks v. Cooper* approach because it may be too difficult to apply in certain cases or unfair to the plaintiff. In such cases, the courts have apportioned damages on a percentage basis. See e.g. *Bourque v. Wells* (1991), 82 D.L.R. (4th) 574 (N.B.C.A.) ... [other authorities omitted]. I make no comment on whether the *Bourque v. Wells* procedure is open in this province in light of *Hicks v. Cooper*. The issue was not argued before us. Either way, Liberty Mutual will be responsible only for the portion of damages attributable to the second driver.

[103] I take this to be an affirmation that, even in the absence of the plaintiff's agreement to limit his/her claim to damages, the "trial problem", if there is one, could be addressed by the method used in *Hicks v. Cooper*.

Other Cases

[104] As I noted earlier, the authorities in this area are difficult to reconcile. Some of them were reviewed by Desotti J. in the decision in *Misko v. Doe* at first instance and some by Rosenberg J.A. on appeal.

Alderson v. Callaghan

[105] *Alderson v. Callaghan* (1998), 40 O.R. (3d) 136, [1998] O.J. No. 2181 (C.A.) was a difficult and very unfortunate case. The plaintiff sued her common law spouse as a result of injuries she sustained in a motor vehicle accident while a passenger in an automobile he was driving. She claimed that she had suffered serious brain damage, including memory loss, personality changes, mental impairment and an inability to work.

[106] The defence, however, took the position that the extensive brain damage she had suffered was not due to that accident but rather to a series of post-accident assaults inflicted on her by her spouse and a further assault committed by a stranger to the accident. The defendant claimed that her personality changes were due either to her pre-existing conditions or the effects of the brain damage caused by the post-accident assaults.

[107] At the trial of the motor vehicle claim, liability of the driver - the common law spouse - was admitted. The only issue was damages.

[108] The trial judge instructed the jury to approach the issue of damages by first considering the plaintiff's overall condition and then deciding what portion of her condition was directly attributable to the motor vehicle accident. He instructed the jury that they might find that the plaintiff's current condition was directly attributable to the accident. He then referred to the expert evidence of a neurosurgeon, who had testified that the plaintiff had only suffered a mild concussion in the accident and that its effects were minimal and short-lived, and continued at p. 138:

It is possible for you, however, to come to the conclusion, and I would say this as much as anything based on [the neurosurgeon's] evidence, that you may have a cumulative effect. He referred to the boxer who receives a number of blows in the head over a period of time. This could well mean that you could find that the truth lies somewhere in between the two positions and that there may have been some contributing factor from this accident and that the accident does not tell the whole story.

[109] The Court of Appeal held that this instruction was incorrect and not in accordance with the principles of contributory causation set out by the Supreme Court of Canada in *Athey v. Leonati*, which had not been released at the time of trial. The Court of Appeal stated at p. 139:

In light of *Athey, supra*, the jury should have been told that if Alderson's overall condition resulted from the cumulative effect of the injuries sustained in the August 10th accident, the multiple beatings inflicted upon her thereafter, and her pre-existing psychological condition, she would nonetheless be entitled to full compensation so long as the jury was satisfied, on a balance of probabilities, that the injuries sustained in the [motor vehicle] accident materially contributed to her overall condition. The jury should then have been told that if they were not so satisfied, they should assess the plaintiff's damages based upon the nature and extent of her injuries, which, in their opinion, were directly attributable to the motor vehicle accident.

The fact that Alderson's overall condition may have been exacerbated by subsequent tortious acts does not relieve the defendant from full responsibility. Rather, as *Athey, supra*, points out at pp. 240-41, where the plaintiff's injuries are attributable to multiple tortfeasors, the *Negligence Act*, R.S.O. 1990, c. N-1 permits defendants to seek contribution and indemnity from one another, according to the degree of responsibility for the injury. The fact that this remedy may have been a hollow one in the

particular circumstances of this case is no reason to depart from the governing principles codified in the *Negligence Act*.

[110] I take this to be a conclusion that if the jury found that the plaintiff's condition was due to the cumulative effect of the assaults, similar to the example of the boxer for whom a series of punches to the head eventually leads to brain damage, although no one punch is itself sufficient, the jury could conclude that the injury was indivisible and that the material contribution test would apply. In those circumstances, the defendants would be concurrent tortfeasors and liable for the entire damages, but with rights of recovery against each other.

[111] *Alderson v. Callaghan* is authority for the proposition that where damages caused by consecutive tortfeasors are indivisible, in that it is impossible to determine which tortfeasor caused which damages, any tortfeasor whose actions materially contributed to those damages will be liable for all the damages and has a right of contribution and indemnity from other tortfeasors who caused those damages.

Medeiros v. Dilworth

[112] *Medeiros v. Dilworth*, above, was followed, apparently with some reservations, by Heeney J. in *Misko v. Doe* in granting leave to issue the third party claim. It involved two consecutive motor vehicle accidents, two years apart. Actions were commenced in both cases, and the matters were to be tried together. Prior to trial, however, the claim in the first accident was settled. At that point, the defendant in the second accident moved to issue a third party claim against the defendant in the first accident.

[113] Chapnik J. reversed the decision of the Master which had denied the request, and allowed the third party claim to be issued. The portion of her reasons dealing with the issues of causation and damages was at para. 14:

... this is a matter that is vital to the final disposition of the action. The defendant is not relieved of responsibility if his tortious act materially contributed to the overall condition of the plaintiff. Where, however, the plaintiff's injuries are attributable to multiple tortfeasors, defendants must seek contribution or indemnity from one another pursuant to the *Negligence Act*, R.S.O. 1990 c. N1: *Alderson v. Callaghan*.

[114] It seems to me, with respect that this brief extract treats the “material contribution” test as the default test for causation, as opposed to the “but for” test in accordance with *Hanke v. Resurfice*. While the peculiar circumstances of *Alderson v. Callaghan* made the “material contribution” test appropriate, there is nothing in the facts of *Medeiros v. Dilworth* to suggest that it was necessary in that case. In light of the Supreme Court's clarification of the law in *Hanke v. Resurfice*, the decision might have been different.

[115] In the Court of Appeal in *Misko v. Doe*, Rosenberg J.A. suggested that the reliance on *Alderson v. Callaghan* in *Medeiros v. Dilworth* may have been misplaced because the issue was different – at para. 28:

In *Alderson*, the plaintiff was injured in a motor vehicle accident and then further injured by her spouse (who also happened, by coincidence, to be the defendant in the motor vehicle accident). However, the only action before the court arose out of the motor vehicle accident. In that context, relying upon the principles from *Athey v. Leonati*, the motor vehicle defendant was wholly responsible for the injuries to the plaintiff and could then seek indemnity against the non-defendant (notionally himself) for that part of the injuries for which the non-defendant was responsible. That, however, is not this case. The plaintiff in this case, Misko, does not seek redress from Liberty Mutual for any part of his injuries for which De Bruin is responsible. It may be that *Medeiros* can be explained simply because there is nothing to indicate that the plaintiff would not seek redress from the second defendant for injuries for which the first defendant is responsible. Similarly, see *Martin v. Rayner*, [2003] O.J. No. 6262, 2003 CarswellOnt 8573 (S.C.J.), leave to appeal refused by Lang J. [2003] O.J. No. 3583 (Div. Ct.).

Martin v. Rayner

[116] In *Martin v. Rayner*, a statement of claim was issued as a result of a car accident. A second accident occurred. The defendant pleaded that the injuries alleged by the plaintiff were caused by the second accident. The statement of claim was never amended and the plaintiff made no claim with respect to the second accident. The defendant took third party proceedings against the subsequent tortfeasor. The defendant said that the injuries for which the plaintiff was seeking compensation had been caused in part by the second accident and was concerned that having made a “material contribution” to those damages he would be liable to pay for all the damages, under the principle set out by the Court of Appeal in *Alderson v. Callaghan*.

[117] Wilkins J., at first instance, found that the existing statement of claim left the defendant exposed to liability for the entire consequences of the plaintiff’s condition, notwithstanding subsequent events. He found that as long as the statement of claim did not limit the plaintiff’s damages to those caused by the first accident, the defendant would be “exposed to liability for the entirety of the consequences of both acts without any division of consequences ... the Defendant is a concurrent tortfeasor with the second tortfeasor in the subsequent event and is entitled to claim contribution and indemnity” (at para. 4, referring to *Katzman v. Yaeck*, [1982] O.J. No. 99 (C.A.) and *Medeiros v. Dilworth*). He found that this was consistent with *O’Neil v. Van Horne*, because in that case the plaintiff had abandoned claims against the parents and former boyfriend and the defendant could only be found liable for the consequences of his own act. I reproduce below his reasons on these points, at paras. 4 and 5:

The third party proceeding is a separate action under the direction and control of the Defendant who is in the equivalent position to a Plaintiff. The fact the Plaintiff may be silent or deny the subsequent tort caused injury is not the basis on which the Defendant's rights should be decided. As long as the Defendant is exposed to liability for the entirety of the consequences of both acts without any division of consequences [as per *O'Neil*] the Defendant is a concurrent tortfeasor with the second tortfeasor in the subsequent event and is entitled to claim contribution and indemnity. *Katzman v. Yaeck* [1982 CarswellOnt 414 (Ont. C.A.)] and *Medeiros v. Dilworth*. [2002] O.J. No. 1406.

In my view there is no conflict between the *O'Neil* case and the *Alderson* case. In *O'Neil* the parents and Tommy could not be concurrent tortfeasors with *Van Horne* because *Van Horne* would never have been exposed to any liability on the material contribution test for the consequences of the acts of the parents or Tommy as the factum abandoned those claims and looked only to *Van Horne*. *Van Horne* could only be found liable for the consequences of his own act and no claim for contribution or indemnity could lie for that. Nor could anyone else be a concurrent tortfeasor for damages attributable to *Van Horne* alone.

[118] Lang J. dismissed an application for leave to appeal. It was argued that the decision of Wilkins J. conflicted with the decisions of the Court of Appeal in *O'Neil v. Van Horne* and *Alderson v. Callaghan*. Lang J. held that the words at para. 14 of the Court of Appeal's judgment in *O'Neil v. Van Horne*, beginning "[N]or could she ...", were *obiter* and unnecessary to the court's decision. She held that it did not conflict with *Alderson v. Callaghan* and other "entrenched authorities" – at para. 11:

This additional comment appears to conflict with *Alderson*, *supra*, which held that a plaintiff is entitled to full damages from any defendant who materially contributed to the injuries. On the authority of *Alderson*, the defendants could seek contribution and indemnity from each other. The *Alderson* approach is consistent with other writings on this subject. See Glanville L. Williams, *Joint Torts and Contributory Negligence* (London: Stevens & Sons Limited, 1951) pp. 2-4; G.H.L. Fridman, *The Law of Torts in Canada*, 2nd ed., (Toronto: Carswell, 2002) at pp. 886-887; David Cheifetz, *Apportionment of Fault in Tort* (Aurora: Canada Law Book Limited, 1981) at pp. 6-7; *478649 Ontario Ltd v. Corcoran*, (1994) 20 O.R. (3d) 28 (C.A.); *Walker Estate v. York-Finch General Hospital*, (1995) 26 O.R. (3d) 280 (Gen. Div.); *Katzman v. Yaeck*, (1982) 37 O.R. (2d) 500 (C.A.); *Medeiros v. Dilworth*, (2002) 59 O.R. (3d) 136 (S.C.J.).

[119] In my respectful view, in light of *Hanke v. Resurfice*, the principle in *Alderson v. Callaghan* should be confined to its peculiar circumstances, where the damages are indivisible and the “but for” test is inappropriate. The “material contribution” test should only be applied where causation cannot be established using the “but for” test.

Veffer v. Feldman

[120] In *Veffer v. Feldman*, the plaintiff was injured in two motor vehicle accidents, eight months apart. He commenced an action against the operators of both automobiles. The defendants cross-claimed against each other. The action against the defendant in the first accident was dismissed, because at the time of that accident the plaintiff was an uninsured motorist and disentitled to recover damages by virtue of s. 267.6(1) of the *Insurance Act*, R.S.O. 1990, c. I.8. A motion was then brought by the defendant in the first accident to dismiss the cross-claim brought by the defendant in the second accident.

[121] Pattillo J. found that *Athey v. Leonati* did not overrule the governing principles in s. 1 of the *Negligence Act*. Referring to *Martin v. Listowel Memorial Hospital*, he held that s. 1 of the *Negligence Act* refers to “concurrent wrongdoers” – that is “tortfeasors, whether joint or several, whose conduct causes a single loss to another”. The conclusions of Pattillo J. on this point are set out at paras. 11 and 12:

Section 1 of the *Negligence Act* provides for contribution between “two or more persons” who have “caused or contributed” to the plaintiff’s damages. In *Martin v. Listowel Memorial Hospital* (2000), 51 O.R. (3d) 384, the Court of Appeal held, in considering section 1 of the *Negligence Act* that it applied to “concurrent wrongdoers” (see para. 48 at p. 401 O.R.). The use of the word “concurrent”, in my view, referred to tortfeasors, whether joint or several, whose conduct caused a single loss to another. In such a case, s. 1 of the *Negligence Act* imposes joint and several liability on the plaintiff and provides for apportionment of degrees of fault among defendants.

The Supreme Court of Canada’s decision in *Athey, supra*, did not overrule the governing principles of s. 1 of the *Negligence Act*. On the contrary, it confirmed them. Major J. stated at para. 22:

Apportionment between tortious causes is expressly permitted by provincial negligence statutes and is consistent with the general principles of tort law. The plaintiff is still fully compensated and is placed in the position he or she would have been in but for the negligence of the defendants. Each defendant remains fully liable to the plaintiff for the injury,

since each was a cause of the injury. The legislation simply permits defendants to seek contribution and indemnity from one another, according to the degree of responsibility for the injury.

[122] Pattillo J. concluded that it was not possible to determine, based on the pleading, whether the injuries sustained by the plaintiff were divisible or indivisible in nature. If the court at trial found that the injury was indivisible (which he described, at para. 16, as “an injury where division of liability is neither possible nor appropriate”), it is possible that the second defendant could be liable for all the plaintiff’s damages based on *Athey*, in which case, if the negligence of both defendants contributed to the damage, the second defendant would be entitled to contribution and indemnity from the first defendant based on the extent of the former’s negligence.

Thompson v. O’Sullivan

[123] In *Thompson v. O’Sullivan*, above, there were two accidents, one in 2004 and the other in 2005. The plaintiff did not commence an action in relation to the first accident. An action was commenced in respect of the second accident and, on becoming aware of the first accident, the defendant issued a third party claim against the person who was allegedly responsible for the first accident. There was nothing in the statement of claim in the action to make it clear that the plaintiff was limiting her claim against the defendant to the injuries she sustained in the second accident. The defendant claimed indemnity from the third party, alleging that his negligence caused or contributed to the injuries for which the plaintiff was claiming damages in the second accident. In both accidents, the plaintiff claimed injuries to her back, neck and cognitive functioning. The injuries were described as “overlapping”.

[124] MacLeod-Beliveau J. referred to *Resurfice Corp. v Hanke* and concluded that the decision clarified rather than changed the law of causation. The basic test is the “but for” test, but the material contribution test may be applied when the two conditions are met: impossibility of proof using the “but for” test and breach of a duty of care, exposing the plaintiff to an unreasonable risk of injury and the plaintiff actually suffering that form of injury.

[125] MacLeod-Beliveau J. distinguished *Misko v. Doe* on the ground that in that case the plaintiff had made it clear that no damages were being claimed for the injuries sustained in the earlier accident. She held, at para. 30:

Here, absent such an express limitation by the plaintiff, the full compensation principle reiterated in *Misko*, *supra* renders the defendant potentially liable for damages arising from the earlier accident. Any such damages were caused by a third party, and as such, I find that the defendant is entitled to issue a third party claim.

And at para. 41:

The defendants have exposure to liability in this case for the fault of the third parties. Given that the plaintiff is potentially seeking damages relating to both accidents from the defendants, it is open to the defendants to seek indemnity from the third parties to the extent of their contribution to the injuries complained of by the plaintiff.

[126] The motion to strike the third party claim was dismissed.

VII. Analysis and Conclusion

[127] I return to the statement of claim, which gives rise to the third party claim. The plaintiff claims damages from the “Fall” (the First Accident) in which she sustained injuries, including a broken hip, as a result of which she claims to have suffered leg and back pain, insomnia, post-traumatic stress disorder and depression. She does not even mention the Second Accident, let alone suggest that the injuries, and the damages flowing from them, are indivisible. The damages claimed relate only to those caused by the First Accident.

[128] That being said, bearing in mind the principles applicable to this motion, particularly the requirement to read the third party claim generously and with regard to the “plain and obvious” test, I have concluded that the third party claim should be allowed to proceed. It cannot be said that it is “plain and obvious” that O’Grady’s and the Third Party are not concurrent tortfeasors because it cannot be determined at this stage that the damages they each caused are separate and divisible. This is a question that will have to be decided by a trial judge. If the trial judge determines that the damages are indivisible, there is at least some risk that O’Grady’s will be required to compensate the plaintiff for at least some of the damages sustained in the Second Accident.

[129] This may not be one of those rare cases where there is a single indivisible injury that would make it impossible to separate the damages caused by the First Accident from those caused by the Second Accident. On the contrary, this is more likely a case in which there are two separate, albeit “overlapping” injuries, because the same hip was broken twice, along with other injuries. Using tried and true methods applied by trial judges, the damages flowing from each injury can probably be conveniently and practically separated. This was possible in the complex circumstances of *Blackwater v. Plint* (sexual assault, compounded by other trauma, abuse and deprivation) and *Broadbent v. GTAA* (“overlapping” brain and hip injury). In my respectful view, it is also consistent with the “separate streams of damage” analysis in *O’Neil v. Van Horne* and with the approach to damages followed in *Hicks v. Cooper*.

[130] This is not, however, a determination that I can make on this motion. It will be up to the trial judge to determine whether the damages caused by the two accidents can conveniently be separated. If it can be, the third party claim will fail. In the meantime, it should be permitted to proceed.

[131] I have come to this conclusion with some reluctance because the third party claim is poorly drafted and, as I have noted, it pleads both fact and argument. My conclusion stretches a “generous reading” of the pleading to the limit and there is nothing in the pleading, or in the facts, to suggest that the *Hicks v. Cooper* approach will be impossible. Moreover, the third party proceeding is bound to add to the cost of the litigation and cause delay.

[132] The result is, however, consistent with the recent case law, namely *Martin v. Rayner* and *Thompson v. O’Sullivan* where third party claims were permitted to proceed in similar circumstances and with *Veffer v. Feldman*, where a cross claim was permitted to proceed. *Misko v. Doe* and *O’Neil v. Van Horne* can be distinguished because, on the particular facts of those cases, there was no risk that the defendant would be required to compensate the plaintiff for damages caused by the other party.

[133] In cases such as this, the court can reasonably look to the plaintiff, who knows the consequences of her injuries better than anyone, to restrict her claim for damages against the lone defendant to the consequences of the injuries caused by that defendant. This would put the issue beyond doubt and would make a third party claim unnecessary. If the plaintiff is not prepared to make this concession, and the third party claim ultimately fails, the trial judge may have to determine whether the plaintiff should bear some or all of the costs consequences.

[134] I acknowledge that this conclusion does not address the troublesome limitations issue raised by counsel for the Third Party. That issue does not arise in this case, but if the second accident were to occur more than two years after the defendant in the first accident was served with the statement of claim, there is an argument, based on the wording of the *Limitations Act, 2002*, that the claim for indemnity can be time-barred before it could possibly have been discovered, because the second accident had not yet occurred. This is a patently absurd result. Sections 4 and 5 of the *Limitations Act, 2002* refer to the day on which the claim against the alleged wrongdoer was “discovered” and it is obvious that a claim cannot be discovered until it occurs. There is a presumption against such absurd consequences: see Ruth Sullivan, *Sullivan on the Construction of Statutes*, 5th ed. (Toronto: LexisNexis Canada, 2008) at pp. 299-323. I do not propose to speculate about what the outcome would be in a case in which this issue is raised.

[135] For these reasons, the motion is dismissed. Costs may be addressed by written submissions, if not resolved.

G.R. Strathy J.

Date: April 21, 2011